PARAKEET MHC FOUNDERS LLC

LIMITED LIABILITY COMPANY AGREEMENT

This Limited Liability Company Agreement (this "**Agreement**") of Parakeet MHC Founders LLC, a Delaware limited liability company (the "**Company**"), is entered into as of August 30, 2021 by and among the Company, AUSTIN BERK and JONATHAN WYSS and any other person who, after the date hereof, becomes a Member in accordance with the terms of this Agreement (collectively, the "**Members**").

WITNESSETH:

WHEREAS, the Members desire to set forth their intentions with regard to the business and affairs of the Company (as defined below) and their rights and obligations with respect to the Company; and

NOW, THEREFORE, the Members state their intention to operate the Company (as defined below) under the Delaware Act (as defined below), upon the following terms and conditions:

Article I.
Formation and Name: Office; Purpose; Term

1.1. *Name of the Company.* The name of the Company is Parakeet MHC Founders LLC.

1.2. *Purpose.* The purposes of the Company are to engage in any lawful act or activity for which limited liability companies may be formed under the Delaware Act and to engage in any and all activities necessary or incidental thereto. The Company shall have all the powers necessary or convenient to carry out the purposes for which it is formed, including the powers granted by the Delaware Limited Liability Company Act and any successor statute, as it may be amended from time to time (the "**Delaware Act**").

1.3. *Term.* The term of the Company commenced on the date and time the certificate of formation of the Company was filed with the Secretary of State of the State of Delaware (the "**Certificate of Formation**") and shall continue in existence perpetually or until any earlier date when the Company is terminated in accordance with the provisions of this Agreement or as provided by law.

1.4. *Registered Agent.* The registered office of the Company and the registered agent for service of process on the Company in the State of Delaware shall be that office and Person named in the Certificate of Formation or such other office (which need not be a place of business of the Company) or such other Person or Persons as the Members may designate from time to time in the manner provided by the Delaware Act and applicable law.

1.5. *Members.* The names, mailing addresses, and percentage limited liability company interests of the Members are set out in Schedule I attached hereto (the "**Members Schedule**"). The Members shall maintain and update the Members Schedule upon the issuance or transfer of any limited liability company interests to any new or existing Member in accordance with this Agreement

Article II.
Members; Capital; Capital Account

2.1. *Initial Capital Contribution.* The Members have contributed to the Company the amounts, in the form of cash, property, services, or a promissory note or other obligation (as such amounts may be amended herein from time to time, the "**Capital Contributions**") set out in the Members Schedule.

2.2. *No Additional Capital Contributions Required.* The Members shall not be required to contribute any additional capital to the Company. The Members shall not have any personal liability for any debt, obligation or liability of the Company.

2.3. *No Interest on Capital Contributions.* The Members shall not be paid interest on their Capital Contributions.

2.4. *Return of Capital Contributions.* Except as otherwise provided in this Agreement, the Members shall not have the right to receive any return of their Capital Contributions.

2.5. *Form of Return of Capital.* If the Members are entitled to receive a return of their Capital Contributions, the Company may distribute cash, notes, property, or a combination thereof to the Members in return of the Capital Contributions.

2.6. *Loans.* The Members may, at any time, make or cause a loan to be made to the company in any amount and on those terms as determined by the Members.

Article III.
Profit, Loss, and Distributions

3.1. *Distributions of Cash Flow.* Cash flow for the Company may be distributed to the Members at such times and in such amounts as determined by the Members. Such distributions shall be allocated to the Members in the same proportion as their percentage limited liability company interests.

Article IV.
Management: Rights, Powers, and Duties

4.1. *Management*.

4.1.1. The Company shall be managed by the Members. The Members shall have the full and exclusive right and power to act for and bind the Company.

4.1.2. The Members may cause the Company to employ and retain such other persons as may be necessary or appropriate for the conduct of the Company's business, on such terms as the Members shall determine, including persons who may be designated as officers. The officers of the Company shall have the titles, powers and duties delegated to them by the Members. Any number of titles may be held by the same officer.

4.1.3. The Members shall have the power and authority to delegate his or her right and power to manage and control the business and affairs of the Company to one or more other persons (including one or more committees, managers and agents, employees and/or affiliates of a manager), including delegation by management agreement or other arrangement.

4.2. *Liability and Indemnification*.

4.2.1. Except as otherwise provided in the Delaware Act, by applicable law, or expressly in this Agreement, no Member will be obligated personally for any debt, obligation, or liability of the Company or other Members, whether arising in contract, tort, or otherwise, solely by reason of being a Member.

4.2.2. The Company shall indemnify, defend and hold harmless the Members and any delegate, employee or officer of the Members (severally, the "**Indemnitee**" and collectively, the "**Indemnitees**"), from and against any claims, losses, liabilities, damages, fines, penalties, costs and expenses (including, without limitation, reasonable fees and disbursements of counsel and other professionals) arising out of or in connection with any act or failure to act by an Indemnitee pursuant to this Agreement, or the business and affairs of the Company, to the fullest extent permitted by law; provided, however, that an Indemnitee shall not be entitled to indemnification hereunder if there is a judicial determination that (a) such Indemnitee's actions or omissions to act were made in bad faith or were the result of active and deliberate dishonesty and were material to the cause of action so adjudicated, or (b) such Indemnitee personally gained a financial benefit to which the Indemnitee was not legally entitled.

Article V.
Transfers of Interest

5.1. *Transfers.* The Members may not transfer in whole or in part their limited liability company interests in the Company, expect as otherwise approved unanimously by the members or for bona fide estate planning purposes.

Article VI.
Admission of Additional Members

6.1. *Admission of Additional Members.* The Members may admit one or more additional members to the Company in their sole discretion.

Article VII.
Dissolution, Liquidation, and Termination of the Company

7.1. *Events of Dissolution.* The Company shall be dissolved and its affairs wound up upon the happening of any of the following events:

7.1.1. Upon the unanimous consent of the Members;

7.1.2. The sale, exchange, involuntary conversion, or other disposition or Transfer of all or substantially all the assets of the Company; or

7.1.3. The entry of a decree of judicial dissolution under § 18-802 of the Delaware Act.

Tax Status; Income and Deductions.

7.2. *Tax Status*. It is the intent of this Company and the Members that this Company shall be treated as a partnership for US, federal, state, and local income tax purposes. No Member shall make an election for the Company to be classified as other than a partnership pursuant to Treasury Regulations Section 301.7701-3.

7.3. *Income and Deductions*. All items of income, gain, loss, deduction, and credit of the Company (including, without limitation, items not subject to federal or state income tax) shall be treated for federal and all relevant state income tax purposes as items of income, gain, loss, deduction, and credit of the Members pro rata in accordance with their membership interests.

Article VIII.
General Provisions

8.1. *Applicable Law.* All questions concerning the construction, validity, and interpretation of this Agreement and the performance of obligations imposed by this Agreement shall be governed by the internal law, not the law of conflicts, of the State of Delaware.

8.2. *Article and Section Titles.* The headings herein are inserted as a matter of convenience only and do not define, limit, or describe the scope of this Agreement or the intent of the provisions hereof.

8.3. *Separability of Provisions.* Each provision of this Agreement shall be considered separable; and if, for any reason, any provision or provisions herein are determined to be invalid and contrary to any existing or future law, such invalidity shall not impair the operation of or affect those portions of this Agreement which are valid.

8.4. *Remedies***.** In the event of any actual or prospective breach or default by any party, the other parties shall be entitled to equitable relief, including remedies in the nature of injunction and specific performance, awarded by a court of competent jurisdiction (without being required to post a bond or other security or to establish any actual damages).

8.5. *Successors and Assigns***.** This Agreement shall be binding upon and shall inure to the benefit of the parties hereto and their respective heirs, executors, administrators, successors, and assigns.

8.6. *Amendment***.** No provision of this Agreement may be amended, restated, amended and restated, supplemented or modified except by an instrument in writing executed by all Members. Any such written amendment or modification will be binding upon the Company and each Member.

8.7. *Counterparts***.** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument. Counterparts may be executed and/or delivered via facsimile, email (including PDF or any electronic signature complying with the U.S. federal ESIGN Act of 2000, e.g., www.docusign.com) or other transmission method, and any counterpart so executed and/or delivered will be deemed to have been duly and validly delivered and be valid and effective for all purposes.

8.8. *Entire Agreement***.** This Agreement, together with the Certificate of Formation and all related Exhibits and Schedules, constitutes the sole and entire agreement of the parties to this Agreement with respect to the subject matter contained herein and therein, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, both written and oral, with respect to such subject matter.

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IN WITNESS WHEREOF, the Members have executed, or caused this Agreement to be executed as of the date set forth hereinabove.

COMPANY:

Parakeet MHC Founders, LLC, a Delaware limited liability company

By: Austin Berk
Name: Austin Berk
Title: Member

By: _____
Name: Jonathan Wyss
Title: Member

MEMBERS:

Austin Berk
Signature: _____
Print Name: Austin Berk

Signature: _____
Print Name: Jonathan Wyss

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IN WITNESS WHEREOF, the Members have executed, or caused this Agreement to be executed as of the date set forth hereinabove.

COMPANY:

Parakeet MHC Founders, LLC, a Delaware limited liability company

By: _____
Name: Austin Berk
Title: Member

By: _____
Name: Jonathan Wyss
Title: Member

MEMBERS:

Signature: _____
Print Name: Austin Berk

Signature: _____
Print Name: Jonathan Wyss

SCHEDULE I

MEMBERS SCHEDULE

Member Name, Address, Email,	**Capital Contribution**	**Membership Interest**
Austin Berk 10221 River Road #59831 Potomac, MD 20859 austin@parakeetcommunities.com	As set forth on Company books and records.	50%
Jonathan Wyss 3191 Grand Avenue #331774 Miami, FL 33133 jon@parakeetcommunities.com	As set forth on Company books and records.	50%